

UNIVERSITY OF PORT HARCOURT

FACULTY OF LAW

Topic: **THE CONCEPT OF OWNERSHIP AND POSSESSION**

What Does Title to Land Mean?

When lawyers and other real estate professionals talk about ‘title’ they are referring to who has legal ownership and the right to use a piece of property. Although the concept of legal title is not restricted to land, it can be equally used in reference to other physical things such as chattels.

Problems with Title in Real Estate

Even though you may have bought a land or house, and paid off the mortgage or the seller, you may not necessarily have legal title to the land or property. Some of the problems with title are:

- a) **Adverse possession** – the possession of land by someone other than the registered or unregistered owner, without that owner’s consent. The whole concept of adverse possession seems very strange to most people. In effect, it makes lawful the “stealing” of land by a person who has no documentary title to it. This raises the question of why the law should allow a squatter to claim ownership of land simply because he or she is in possession of it. See: **J.A. Pye (Oxford) Ltd. & Ors. v. Graham & Another (2002).**
- b) **Liens** – liens are like mini-mortgage placed on the property to force the property owner to pay a debt. Any liens on the property must be paid before the land can be sold.
- c) **Covenants of record** – these are promises that the original land owner made to someone else. For example, the owner could have promised his neighbour, that the neighbour will always be able to drive a car or automobile across the land. This promise was then written into each deed, every time the land or property was sold.

Buyer’s protection against Title Defects

- (a). Title search
- (b). Contingency provision
- (c). Title insurance

Title to land in Nigeria

Any person claiming a genuine and sincere right to possession and use of land must have good and valid title to the land he is claiming without which an action for declaration of title to land must fail. Title to land has been defined to mean:

“The union of all elements (as ownership, possession, custody) constituting the legal right to control and dispose of property, or legal evidence of a person’s ownership right in a property, an instrument such as deed that constitutes such evidence. Title is generally used to describe either the manner in which a right to property is acquired, or the right itself. It refers also to the conditions necessary to acquire a valid claim to land”.

OWNERSHIP

Ownership – This is the full and complete right of dominion over property. The power to enjoy and dispose of things absolutely, though this power is limited by the general law, which in most cases limits the right of the owner to use and enjoy his property because he or she has granted rights over the property to a third party. There is a presumption that a person in possession is the owner. Ownership is said to be original, where the owner has brought the property into human control for the first time, as by occupying land or derivative, where the owner acquires from the previous owner as in a sale.

Theoretically, ownership of land in Nigeria is vested in the Governor of the state; the concept of ownership by individuals and companies is expressed through the doctrine of estates. Therefore, ownership, title to property means the right by which a thing belongs to someone in particular, to the exclusion of all other persons.

The Supreme Court in the case of **Elegushi v. Oseni (2005)** aptly stated the **five types of legal land ownership in Nigeria**:

- (i) By traditional evidence.
- (ii) By acts of ownership extending over a sufficient length of time which acts are numerous and positive enough to warrant the inference that they are owners.
- (iii) By acts of long possession and enjoyment of the land in dispute.
- (iv) By the production of the documents of title which must be authenticated.
- (v) By proof of possession of connected or adjacent land in circumstances rendering it probable that the owners of such connected or adjacent land would in addition be the owners of the land in dispute.

In the case of **Abraham v. Olorunfemi (1991)**, the Court of Appeal explained ownership in the following manner:

“It connotes a complete and total right over property, it is not subject to the right of another person. Because he is the owner, he has the full and final right of alienation or disposition of the property, and he exercises his right of alienation and disposition without seeking the consent of another party because as a matter of law and fact there is no other party’s right over the property that is higher than that of his”.

Note the position under Customary Law – **Amodu Tijani v. Secretary of Southern Nigeria (1921)**, where **Lord Haldane** stated:

“The next fact which it is important to bear in mind in order to understand nature of land law is that the notion of individual ownership is quite foreign to native ideas, land belongs to the community, the village or the family never to the individual. This is a popular native custom along the whole length of this coast, and whenever we find, as in Lagos, individual owners; this is again due to introduction of English ideas”.

Note that **Section 1 of the Land Use Act (LUA) 1978** vests all land in each state on the Governor of the State.

POSSESSION

In law, possession is the control a person intentionally exercises toward a thing. In all cases, to possess something, a person must have an intention to possess it. A person may be in possession of some property (although possession does not always imply ownership).

Possession may be actual, that is having physical custody or control of an object.

Possession may also be constructive, that is where a person has no hands on custody of an object, often referred to as ‘possession in law,’ that is where a person has knowledge of an object plus the ability to control the object, even if the person has no physical contact. For example, where a person keeps an important document or thin or other valuable items in a bank safety deposit box. Although he or she do not have actual physical custody of these items, he or she do have knowledge of the items and the ability to exercise control over them.

What constitutes acts of Possession?

In land law, what constitutes acts of possession has been captured in several Nigerian cases:

Possession of property or a parcel of land means the occupation or physical control of the property or parcel of land by a person either personally or through an agent or servant –see: **Okegbami v. Akintola** (2008); **Asiniola v. Fatodu** (2009); **Obi v. Onyermel Ukwue** (2011).

In **Mogaji v. Cadbury Fry (Export) Ltd** (1972), the Supreme Court stated thus:

“...possession of a parcel of land means the occupation or physical control of the land either personally or through an agent or servant”.

Thus, if a person adduces evidence that he or his agents and servants were cultivating a farmland, that would be evidence sufficient to establish that he was in possession of the land. Similarly, if a person erects on a parcel of land, a signboard bearing his name, he thereby gives notice to all and sundry that he is in possession of that land. The same is true of the converse case, that is to say, where signboard bearing the name of a company is found on a farmland with workmen scattered all over the land uprooting trees, etc. that would be prima facie evidence that the company 'is in possession of the land...'

Thus, the courts have held that putting tenants and pillars on a piece of land constitutes acts of possession – **Adewole v. Dada** (2003); **Ladipo v. Ajani** (1997).

NATURE OF TITLE TO LAND UNDER CUSTOMARY LAW

The basic rule under customary law is that land belongs to the villages, communities or families with the chief or headman of the community or family as the 'manager' or 'trustee' holding the land for the use of the whole village, community or family. This view is consistent with that of Rayner C.J., in his Report on Customary Land Tenure in 1898. According to him, "land belongs to the community, the village or the family and never to the individual". This proposition is judicially recognized in the case of **Amodu Tijani v. Secretary of Southern Nigeria** (1921), by the Privy Council, per Lord Viscount Haldane.

Again, title to land under customary law is vested in the corporate unit and no individual within the unit can lay claim to any portion of it as the 'owner'. Ownership of land was held by the community or family. An individual's right is limited to the use and enjoyment of the land. An individual cannot alienate the land without the consent of the representatives of the corporate unit recognized as such in law. This is as a general rule of law.

Note: From the foregoing, it is clear that under customary land law, there are two basic systems of land holding: **family** and **communal** land holding. The dictum of **Lord Viscount Haldane** in **Amodu Tijani v. Secretary of Southern Nigeria** (1921), is supportive of the above position. According to the Privy Council in that case:

"...the notion of individual ownership is quite foreign to native ideas. Land belongs to the family, never to the individual. All members of the community, village or family have an equal right to land"

The conclusion in the above case was accepted with such totality that it was raised to the status of a presumption in law, even where there is no evidence to support it. The consequence was that, the burden was now on the person claiming that land is not, or has ceased to be communal

property to prove his claim: **Eze v. Igiliege** (1962). The presumption of family or communal ownership could therefore be displaced by evidence of individual ownership.

A judicial re-echo of the foregoing position of the law can be found in the case of **Chukwuemeka v. Nwankwo** (1985), where the Supreme Court stated that the general principle of communal ownership of land pronounced in **Amodu Tijani v. Secretary Southern Nigeria (supra)** would not apply where it is established by evidence that individual ownership of land is permitted in a particular area by the relevant customary law or native law and custom. The court further stated that communal ownership, where it previously existed may be determined by partition. Thus, partition signifies an end to communal ownership.

The Supreme Court in **Adesanya v. Oteuwu**, stated that it is trite law that where a family (or community) owns a piece of land communally, title or ownership remains with the family unless and until there is a partition. Such partition, the court stated, if proved, will have the effect of a division of ownership.

The Court of Appeal in **Olohonnru v. Jeniola** (1991), buttressed this point by stating blankly that where land is owned communally either by the family or community, the legal estate in such land is not vested in the chief or family head; but, in the family or community. Indeed, family land that is not partitioned remains family land, the fact that a member of the family has improved upon it notwithstanding: **Sanusi v. Makinde** (1994).

Again, while it is conceded that under customary land tenure system, communal or family land ownership is prominent and predominant, it is certainly not correct to say that individual ownership is unknown under native law and custom. An individual may acquire absolute ownership over a piece of land through self help, by grant from traditional authority or by purchase from a previous owner. The land so acquired only becomes family or communal land upon the death of the individual, when it devolves on his children.

Family ownership of land therefore, is sometimes derived from previous individual ownership. The land so inherited is held as family property until partitioned by the individual members of the family. In the light of the foregoing, it may be deduced that ownership of land under customary law was held by the community, family and individual.

The Concept of Dualism of Title to Land in Nigeria

The imperium idea of dual title to land in Nigeria is developed from the critical evaluation and assessment of the discrete current land holding and management in Nigeria. Prior to the enactment of the **Land Use Act in 1978**, every piece of land in Nigeria was possessed and used by an individual or group of individuals through any of the modes described above save statutory enactment. The conception of statutory title to land in Nigeria was born out of the enactment of the **Land Use Act in 1978**.

It is worthy to state categorically here that, the **Land Use Act** which is a constitutional provision by virtue of **Section 315 (5) of the Constitution of the Federal Republic of Nigeria, (CFRN), 1999 as amended**) does not appropriate or nationalize land in Nigeria, neither does it revoke the existing land tenures and holdings in the country.

Yet **Section 1 of the Land Use Act** vests the ownership, control, management and administration of all land in the territory of each State of the Federation on the Governor. Hence the imperative conceptualization of dual title to land in Nigeria, dual means two and in our considered opinion every piece of land in Nigeria has two title holders, who are:

- 1 The person in actual possession and use of the land; and
- 2 Statutory title holder by virtue of **Section 1 of the Land Use Act**, held by the Governor of each State.

The concept of dualism of title to land in Nigeria can be better appreciated by responding to the following questions:

- (i) Does customary title to land exist in present day Nigeria?
- (ii) Is there any law in Nigeria that confers title to land on any institution?
- (iii) Is there any land in Nigeria that is not customarily affiliated?

Customary title to land was the one widely known and practiced in Nigeria before the advent of the **Land Use Act in 1978**. Sequel thereto, the fundamental poser one may present is, Does the Land Use Act abrogate or alter customary possession and use of land in Nigeria? Or does it revoke customary title to land in Nigeria? Our humble response to the posers posed above, are in the negative, and if in the negative then customary title and use of land exist in pre and post 1978, property law practice and jurisprudence in Nigeria. To substantiate this proposition is the case of **Garuba Abioye v Sa'adu Yakubu**,⁵ where the full Bench of the Supreme Court of Nigeria while interpreting the provisions of the Land Use Act with respect to customary right of occupancy unanimously held as follows:

A customary right of occupancy means the right of a person or community lawfully using or occupying land in accordance with customary law and includes a customary right of occupancy granted by a Local Government under this Act. A person with customary right of occupancy is entitled to use the land in accordance with customary law. A customary right of occupancy predates the Land Use Act and is intimately linked with the custom of the people of the area. It is a creation of customary law and the fact that it can now be granted by the Local Government has not taken it out of the realm of customary law.

Further substantiation is procured in the judicial decision, **N.N.P.C v Sele & Ors**,⁶ where the Court held:

It settled law that the right of use of the land by the community is intact before and after the promulgation of the Land Use Act. The Land Use Act, I agree, does not alter vested customary

rights of the holder of the land. See also the case of: **The Dagaci of Dere & 9 Ors v The Dagaci of Ebwa & 9 Ors** [2001].

From the foregoing canvassed above, customary title and customary possession and use of land exist in pre and post 1978 Nigeria. Similar provisions are enshrined in **Sections 24 (a) & (b) and 51 (1) of the Land Use Act.**

Therefore, there is customary title to land in Nigeria which is never disturbed by enactment.

Whether there any law in Nigeria that confers ownership, control, management and administration of land on any institution? Our reaction to this puzzle is rather very simple, it is firmly in the affirmative. This is in consonance with the provisions of **Section 1 of the Land Use Act**, which is a constitutional provision by virtue **Section 315 (5) of the Constitution of the Federal Republic of Nigeria, (CFRN), 1999, as amended**, in fact **Section 1 of the LUA** provides:

“Subject to the provisions of this Act, all land comprised in the territory of each state in the Federation are hereby vested in the Governor of that state and such land shall be held in trust and administered for the use and common benefit of all Nigerians in accordance with the provisions of this Act”.

Therefore, there is a law in Nigeria that confers ownership and administration of all land in each State of the Federation of Nigeria on an institution, and that is the Land Use Act of 1978, that does so on the Governor of each State.

On the third question, note that the **Land Use Act**, is an Act of the National Assembly that covers the entire field of legislation in Nigeria. The last question is goes as thus, is there any land in Nigeria without customary affiliation? The answer to this question is simple and straight, there is none, it is in the negative. All the land marked, designated and used as Government Reserved Area (GRA) and urban area in all capital cities and some other urban centres in Nigeria were once held and controlled by customary means by the aborigines of those localities. The respective Governments acquired the land from the natives who were never marked and designated as municipal or urban land from the initial original position. It is worthy to hold that there is no land in Nigeria without customary affiliations.

Therefore, at this premise as succinctly canvassed above, to firmly conclude that, if customary title and possession of land exist in Nigeria and all land are customarily affiliated and the same are not revoked, yet same are vested on the Governor of each State. It then follows that two titles exist on every piece of land in Nigeria, the one held by the person in actual possession and use of the land (customary title holder) and the other title held by the Governor by virtue of **Section 1**

of the Land Use Act; hence the sound and logical conclusion of the concept of dualism of title to land in Nigeria.

The Operation of the Two Titles in Property Law Jurisprudence and Practice in Nigeria

By the statutory synergies of the provisions of **Section 44 of the Constitution of the Federal Republic of Nigeria (CFRN), 1999, as amended** and **Sections 28 and 29 of the Land Use Act**, the Government through the Governor can compulsorily acquire any land within the territorial jurisdiction of each State in Nigeria for the sole purpose of overriding public interest and the person in actual possession and use of the land (the customary title holder) cannot exert even the microscopic or infinitesimal resistance, but however entitled to only payment of commensurate and prompt compensation and perhaps relocation or both.

The modus-operandi (mode of operating) the dual title holders in Nigeria interfaces as follows: The Government through the Governor has the absolute power to compulsorily acquire any land within the enclave of the State by virtue of **Sections 1 and 28 of the Land Use Act** and as well **Section 44 (1) of the Constitution of the Federal Republic of Nigeria**; whereas the person in actual possession and use of the land or (the customary title holder) cannot give up his title until commensurate compensation or relocation is made by the government.

It appears, this kind of transaction could be equated to a normal simple commercial transaction between two contracting parties where consideration has been passed by the parties. Particularly, as **Section 29 (1) of the Land Use Act** provides that the compensation to be paid must be equal to the market and economic value of the property as at the time of acquisition. Howbeit, it is not a simple contractual transaction against the background that, the person in actual possession and use of the land is not given the option to accept or refuse the offer made by government, save negotiation on quantum of compensation in certain circumstances. This is indeed, a peculiar species of land handling and management in Nigeria created by statutes.

It is indeed, an aphorism of no controversy that the property jurisprudence in Nigeria is a unique species of land holding as it admits dual title to every expanse of land in the federation. The two titles run concurrently, which are; the title held statutorily by the Governor of each State of the federation by virtue of **Section 1 of the Land Use Act of 1978** and the second title held by the person in actual possession and use of the land (the customary title holder). This special land holding in Nigeria is made possible in that the enactments do not revoke or appropriate the original titles of the indigenous people before placing same on the Governor. This is no doubt, a peculiar system of ownership and management of land in Nigeria which is obtainable by statutory entrenchment that operates side by side with the already existing orthodox and traditional land holdings in Nigeria.

Recommendations

The following reformative measures are recommended:

a) **Section 315 (5) of the Constitution of the Federal Republic of Nigeria, (CFRN),1999, as amended** needs to be altered by removing the **Land Use Act** from forming parts of the Constitution of the Federal Republic of Nigeria, so that it could be treated as any other enactment in Nigeria.

b) The **Land Use Act**, as it is today is a scalar quantity having neither magnitude nor direction, at best the Act is a gynandromorph in nature that is, sharing the characteristics of both male and female at the same time. Thus we aligned ourselves with the jurisprudential school of thought that holds, if a law is not obeyed such should be totally disdained, and accordingly we submit that the **Land Use Act** be expunged, from the corpus juris of Nigeria. This informed decision is reached on the sound premise that the advent of the **Land Use Act** has no significant effect on land holdings in the rural areas where more than ninety percent (90%) of land in each state are found. The effect of **Sections 21 and 28 Act**, referring to compulsory acquisition of land within a state's territory is an outright purchase, since **Section 29 (1) of the Act** stipulates that compensation must be equal to the market value of the land as of the date of revocation and acquisition.

c) Conversely, should the Land Use Act be? We recommend a complete overhauling of the Act to equivocally and discretely appropriate and nationalize all land within the state and vest same on the Governor or any other institution to solely control, manage and administer all land. This shall be facilitated by inaugurating **Land Management and Administration Committee (LMAC)** for each ward in every state on behalf of the Governor or any other institution, for revenue creation to reflect the linchpin and the real tenet of the Act. This recommendation shall be so apt now that the clarion call for true federalism, the panacea for Nigeria is on top gear by almost all facets of the Nation and fervently pray for the National Assembly to adhere firmly to such genuine agitation of the people of Nigeria in her alteration process of the **1999 Constitution of the Federal Republic of Nigeria**.

P.S.: This lecture note was NOT prepared by **Adv. Chimdike** and **Faithful**, they only highlighted certain parts to enhance clarity and ease of understanding.